



Decide What Your Oath Was For

Teacher copy (everything in the student copy, plus answers and teaching notes)

The article, marked for rhetorical devices (one color throughout):

1 Mr. President, on the day you took office you signed Executive Order 14160, and you gave it a generous title: Protecting the Meaning and Value of American Citizenship. It directed the federal government to withhold citizenship documents from certain children born on American soil. I write as a citizen with no standing over you, only the small standing the Constitution gives every person it names. You swore that day to preserve, protect, and defend [Parallelism] it.

2 Let me grant you the part that is real. A nation may decide who enters and who stays, and many serious people share your worry that the present system is neither orderly nor honest. [Concession] The order reaches only children born after February 19, 2025, to mothers here unlawfully or briefly on a visa, whose fathers hold no citizenship or residence of their own. You did not invent the anxiety behind it. I will not pretend that wanting a border to mean something is a low motive.

3 Yet the order does not answer that worry. It answers a constitutional question instead, and answers it against the document you swore to defend. [Shift / volta] The Fourteenth Amendment, ratified in 1868, says that all persons born in the United States and subject to the jurisdiction thereof are citizens. In 1898, in *United States v. Wong Kim Ark*, the Court held that a child born here to foreign parents is a citizen, excepting only the children of diplomats and of an invading army. Your lawyers now ask the Court to find in subject to the jurisdiction a requirement of lawful domicile that no one who wrote the Amendment thought to mention. Chief Justice Roberts called the position quirky. [Ethos]

4 You will say the meaning is contested, and in a courtroom it is. But every lower court that has ruled has found the order to violate the Citizenship Clause, and a statute Congress passed, codified at 8 U.S.C. 1401, repeats the Amendment's words almost exactly. An oath to defend a text is not kept by reading the text as you wish it read. [Antithesis]

5 A decision is expected before the Court rises at the end of June. You will not write it; nine other people will. What is still yours is smaller and harder. You can spend the office on a reading your own appointees could barely say in open court without flinching, or you can let the words mean what they have meant since 1868. The children covered by the order were born here. Decide what your oath was for.

Devices, and why they are here:

Parallelism (paragraph 1): “preserve, protect, and defend”

The author quotes the oath's own triple verb, preserve, protect, and defend, and lets its balanced structure carry the letter's whole leverage: the addressee is bound by words he himself spoke. The repeated grammatical shape sits mid-sentence, not at the head of successive clauses, which is what makes this parallelism rather than anaphora.

Concession (paragraph 2): “A nation may decide who enters and who stays, and many serious people share your worry that the present system is neither orderly nor honest.”

The writer grants the opposing side genuine ground, that a nation may set its border and that the worry behind the order is serious and widely shared. Conceding this much in good faith is what lets the later turn read as fair rather than as a partisan reflex. It is tagged alone; the refutation arrives later in its own right and is not co-marked here.

Shift / volta (paragraph 3): “the order does not answer that worry. It answers a constitutional question instead, and answers it against the document you swore to defend.”

This is the pivot of the whole letter, the move from granting the immigration worry to reframing the order as a constitutional violation. The turn is the claim itself, that the order answers a different question against the document he swore to defend; the connective Yet only signals it, so the span covers the clause, not the cue word.

Ethos (paragraph 3): “Chief Justice Roberts called the position quirky.”

By reporting that the Chief Justice called the administration's reading quirky, the writer borrows credibility from the highest possible legal authority rather than asserting his own. The judgment lands harder coming from a Roberts-led Court than from the letter writer, and it keeps the deferential posture the register requires.

Antithesis (paragraph 4): “An oath to defend a text is not kept by reading the text as you wish it read.”

Two opposed ideas are set in balanced form: defending a text versus reading it as one wishes. The opposition is the argument in miniature, and the symmetry makes the contradiction between the oath and the order feel self-evident rather than argued.

AP-style multiple choice:

1. The relationship between the second paragraph and the third paragraph is best described as one in which the writer first
 - A) concedes the worry behind the order and then recasts the order as a constitutional question that worry does not reach
 - B) raises a practical objection to the order and then withdraws it once the legal history is laid out
 - C) voices his own grievance against the President and then broadens it into a national complaint
 - D) states the order's legal basis and then supplies the evidence that confirms that basis
2. In context, the final two sentences of the last paragraph (“The children covered by the order were born here. Decide what your oath was for.”) most directly serve to
 - A) introduce new legal evidence that the body of the letter had withheld for emphasis
 - B) hand the President a concrete obligation framed as his own choice rather than as a demand
 - C) predict how the Supreme Court is likely to rule before the end of June
 - D) soften the letter's argument by conceding that the dispute is ultimately a matter of personal conscience

Multiple choice answer key:

1. Answer A. Paragraph two grants that a nation may control its border and that the worry behind the order is real; paragraph three turns on Yet to argue that the order answers a constitutional question instead, one the worry does not address. The choice about a practical objection later withdrawn inverts the structure, since the writer never abandons his point. The choice about stating the order's legal basis and confirming it reverses the writer's stance, because he argues the order has no valid basis. The choice about a personal grievance broadened to a national complaint mistakes the deferential, principle-based appeal for a personal attack the letter avoids.

2. Answer B. The clipped close states a plain fact and then charges the President to act on his oath, leaving the next move to him without issuing a bald demand, exactly the obligation-as-choice ending the register calls for. The softening-into-conscience choice misreads the firm charge as a retreat. The new-evidence choice is wrong because the closing lines add no fact the letter had not already established. The prediction choice mistakes the address to the President for a forecast about the Court, which the letter explicitly says he will not write.

Discussion questions:

1. The letter spends an entire paragraph agreeing that the President's worry about the border is real before arguing that the order is unconstitutional. How does granting that ground first change the force of the constitutional argument that follows?
2. The writer never says the President is wrong outright; instead he quotes the oath and the Chief Justice back at him. Why might holding someone to his own words and his own appointees be more persuasive than direct accusation, and what does the writer risk by staying so deferential?

Sample strong discussion responses:

1. A strong answer sees the concession as strategic rather than soft. By granting that a nation may police its border and that the anxiety behind the order is serious, the writer removes the easy charge that he is simply pro-immigration or anti-Trump. Having been fair, his turn lands as an earned distinction, that this is a constitutional question and not an immigration one, so the reader is more willing to follow him to the conclusion that the order violates the Fourteenth Amendment.
2. A strong answer notes that the borrowed-authority move keeps the writer in the deferential posture an open letter requires while making the argument harder to dismiss. Quoting the oath turns the President's own promise into the standard he is failing, and reporting that Chief Justice Roberts called the reading quirky lets a Trump-aligned Court, not the writer, deliver the verdict. The risk is that deference can read as weakness or as veiled sarcasm; the writer manages it by staying earnest and letting the facts, not his tone, carry the indictment.

Writing prompt (Homework or extended in-class, Q3 argument):

The writer argues that an oath to defend a text is not kept by reading the text as one wishes it read. Write an essay in which you defend, challenge, or qualify the claim that public officials are bound by the established meaning of the laws and oaths they swear to, even when they sincerely believe a different reading would serve the country better. Use appropriate evidence from your reading, observation, or experience to support your line of reasoning.

Common misconceptions to watch for:

- Students may read the concession in paragraph two as the writer's settled position, concluding that he supports the order. The ground is granted on purpose so that the later turn reads as fair; the writer agrees about the border in order to argue that the order is still unconstitutional.
- Students often mark the word Yet as the shift in paragraph three. The connective only signals that a turn is coming. The volta is the claim that follows it, that the order answers a constitutional question against the document the President swore to defend, so the whole clause is the device, not the cue word.
- Students may call the quoted oath, preserve, protect, and defend, an example of anaphora. The repeated structure sits inside a single sentence rather than opening successive clauses, so it is parallelism. Reserve anaphora for a word or phrase repeated at the start of consecutive clauses.
- Students may treat the deference in the letter as weakness or read the line about appointees who could barely speak without flinching as sarcasm. The register runs on earnest deference and borrowed authority; the writer holds the President to his own oath and his own Court rather than mocking him, which is a different and more demanding rhetorical move.

AP exam alignment:

This opener teaches the open-letter strategy of holding a powerful addressee to his own stated principles, pairing a genuine concession with a clear volta so students can see how granting ground strengthens an argument. It gives clean, markable instances of parallelism (the quoted oath), borrowed ethos (citing the Chief Justice), and antithesis (defending a text versus rewriting it), and it asks students to analyze reasoning and tone rather than merely summarize a current event.